

TENTATIVE RULING

Case: **Winters Community Housing One LP v. Hughes**
 Case No. CV2025-2202

Hearing Date: **April 10, 2026** **Department Two** **1:30 p.m.**

Parties are **DIRECTED TO APPEAR.**

TENTATIVE RULING

Case: **Zhou v. Hotel Winters, LLC**
 Case No. CV2022-1963

Hearing Date: **April 10, 2026** **Department Eight** **1:30 p.m.**

Defendant Michael Steven Olivas’ motion to strike:

Defendant Michael Steven Olivas’ request for judicial notice is **DENIED**. (Evid. Code, §§ 452, 453.) Defendant did not make his request for judicial notice in a separate document. (Cal. Rules of Court, rule 3.1113(l) [“Any request for judicial notice must be made in a separate document...”].) Further, defendant made this request in the reply, not his moving papers. (See *Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537 [“The general rule of motion practice...is that new evidence is not permitted with reply papers”].)

The Court proposes to take judicial notice of the following records in its own file:

1. The Court’s January 25, 2023, minute order;
2. The Court’s May 8, 2025, minute order;
3. The Court’s August 14, 2025, minute order; and
4. Plaintiff Xinyao Zhou’s complaint, filed November 10, 2022.

(Evid. Code, §§ 452, subd. (d), 455, subd. (a).) The Court shall afford each party reasonable opportunity before the cause is submitted for decision by the Court to present to the Court information relevant to: (1) the propriety of taking judicial notice of the matter; and (2) the tenor of the matter to be noticed. (Evid. Code, § 455, subd. (a).)

Defendant’s motion to strike plaintiff’s third amended complaint is **GRANTED WITHOUT LEAVE TO AMEND**. (Code Civ. Proc., §§ 435, 436, subd. (b).) “It is the rule that when a trial court sustains a demurrer with leave to amend, the scope of the grant of leave is ordinarily a limited one. It gives the pleader an opportunity to cure the defects in the particular causes of action to which the demurrer was sustained, but that is all.” (*Community Water Coalition v. Santa Cruz County Local Agency Formation Com.* (2011) 200 Cal.App.4th 1317, 1329.) On January 25, 2023, the Court granted plaintiff leave to amend as to defendant Michael Steven Olivas and the following causes of action: breach of contract (second); false promise (seventh); concealment (eighth); conspiracy (ninth); and intentional misrepresentation (eleventh).

However, plaintiff’s third amended complaint (“TAC”) asserts existing causes of actions against defendants not previously named as to those causes of action and adds allegations as to causes of action which the Court did not permit leave to amend. (See, e.g., Complaint, pp. 16, 18-21, 24, & 26; TAC, pp. 11-13, 16-23, 34-36, & 39-41; *Community Water Coalition, supra*, 200 Cal.App.4th at p. 1329; see also *Gross v. Dep’t of Transp.* (1986) 180 Cal.App.3d 1102, 1106 [a plaintiff may not amend a complaint to add a new party without leave of court after the sustaining of a demurrer].) Plaintiff did not obtain leave of court to amend her complaint outside of the Court’s January 25, 2023, May 8, 2025, and August 14, 2025, orders. (See Code Civ. Proc., § 473, subd. (a)(1).)